

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index #
Date of filing:

-----X
NYKESHA JOHNSON, D.J., an infant by her Mother and
Natural Guardian, NYKESHA JOHNSON and NYKESHA
JOHNSON, individually,

Plaintiffs designate Bronx
County as the place of trial

Plaintiffs,

Basis of the venue is Locus of
Occurrence

-against-

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
MURPHY, POLICE OFFICER AARON SOLOMON-
Shield No. 20668 and JOHN DOES-Police Officers as yet
unidentified,

Plaintiffs reside at
428 East 117th Street, Apt# 6D
New York, New York 10035

Defendants.

County of New York

-----X

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to
serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice
of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive
of the day of service (or within 30 days after the service is complete if this summons is not
personally delivered to you within the State of New York); and in the case of your failure to appear
or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

POLICE OFFICER MURPHY
c/o New York City Police Department- 43rd
Precinct
900 Fteley Avenue
Bronx, New York 10473

POLICE OFFICER AARON SOLOMON-
Shield No. 20668
c/o New York City Police Department- 43rd
Precinct
900 Fteley Avenue
Bronx, New York 10473

Dated: Brooklyn, New York
November 4, 2020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
 NYKESHA JOHNSON, D.J., an infant by her Mother and
 Natural Guardian, NYKESHA JOHNSON and NYKESHA
 JOHNSON, individually,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
 MURPHY, POLICE OFFICER AARON SOLOMON-
 Shield No. 20668 and JOHN DOES-Police Officers as yet
 unidentified,

Defendants.

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Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
 defendants herein, upon information and belief, respectfully show to this Court, and allege as
 follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
 AND BATTERY ON BEHALF OF NYKESHA JOHNSON**

1. That at all times hereinafter mentioned, plaintiff, NYKESHA JOHNSON, was and still is a resident of the County, City and State of New York.
2. That at all times hereinafter mentioned, infant plaintiff, D.J., was and still is a resident of the County, City and State of New York.
3. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
4. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
5. That prior hereto on December 23, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof,

and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

6. Pursuant to the General Municipal Law, the Statutory 50-H Hearings of the plaintiffs are currently scheduled for December 1, 2020.

7. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

8. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, NYKESHA JOHNSON, was lawfully present inside the premises known as the 43rd Precinct, located at 900 Fteley Avenue, in the County of Bronx, City and State of New York.

9. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, NYKESHA JOHNSON, was approached and was assaulted and battered by the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified. The plaintiff was forcefully placed in handcuffs, arrested and taken into police custody at the 43rd Precinct and was held there until approximately 2:00 a.m., on November 30, 2019. Thereafter, the plaintiff was transported to the Bronx County Central Booking until she was arraigned and released the same day at approximately 10:00 pm.

10. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the plaintiff, NYKESHA JOHNSON, was assaulted and battered by the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

11. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

12. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, NYKESHA JOHNSON, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

13. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

14. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

15. By the reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF NYKESHA JOHNSON**

16. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "15" inclusive with the same force and effect as if more fully set forth at length herein.

17. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the

defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, falsely arrested and violated the civil rights of the plaintiff, NYKESHA JOHNSON.

18. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

19. By the reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF NYKESHA JOHNSON**

20. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "19" inclusive with the same force and effect as if more fully set forth at length herein.

21. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, NYKESHA JOHNSON.

22. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

23. That as a result of the aforesaid false arrest and confinement, plaintiff, NYKESHA JOHNSON, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

24. By the reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF NYKESHA JOHNSON**

25. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "24" inclusive with the same force and effect as if more fully set forth at length herein.

26. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff, NYKESHA JOHNSON.

27. That the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

28. By the reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF NYKESHA JOHNSON**

29. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "28" inclusive with the same force and effect as if more fully set forth at length herein.

30. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and

JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

31. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, NYKESHA JOHNSON.

32. That as a result of said intentional and negligent acts, the plaintiff, NYKESHA JOHNSON, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

33. By reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF NYKESHA JOHNSON**

34. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "33" inclusive with the same force and effect as if more fully set forth at length herein.

35. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

36. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, NYKESHA JOHNSON.

37. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

38. By reason of the foregoing, plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF NYKESHA JOHNSON**

39. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "38" inclusive with the same force and effect as if more fully set forth at length herein.

40. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, NYKESHA JOHNSON.

41. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

42. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as

those at issue here and has failed to change its policies, practices and customs to stop this behavior.

44. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

45. As a direct and proximate result of this unlawful conduct, the plaintiff, NYKESHA JOHNSON, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF NYKESHA JOHNSON**

46. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "45" inclusive with the same force and effect as if more fully set forth at length herein.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

49. By the reason of the foregoing, the plaintiff, NYKESHA JOHNSON, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR SEXUAL
ASSAULT AND BATTERY ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

50. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "49" inclusive with the same force and effect as if more fully set forth at length herein.

51. That prior hereto on December 23, 2019, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, was served and that thereafter, and within the time provided by law, this action was commenced.

52. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, D.J., was lawfully present at or about the intersection of Rosedale Avenue and Watson Avenue, at or near the housing project known as the Sotomayor Houses, in the County of Bronx, City and State of New York.

53. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, infant plaintiff, D.J., was approached and was assaulted and battered by the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified. The infant plaintiff, D.J., was handcuffed and was placed under arrest and was seated in the back of the police vehicle. While in the vehicle, the infant plaintiff, D.J., was sexually assaulted and battered by one of the male police officers. The male officer aggressively removed the plaintiff's jacket and was touching and grabbing the infant plaintiff inappropriately by the hips, stomach, area above her buttocks and breast area. Thereafter, the infant plaintiff, D.J., was taken to the 43rd Precinct, where she was placed and was held in a holding cell for approximately fifteen (15) hours. On November 1, 2019, at approximately 10:00 p.m., the

plaintiff was transported to the Bronx County Central Booking where she was held until her release the next day, on December 1, 2019 at approximately 1:00 a.m.

54. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the infant plaintiff, D.J., was assaulted and battered by the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

55. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

56. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the infant plaintiff, D.J., were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

57. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

58. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

59. By the reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

60. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "59" inclusive with the same force and effect as if more fully set forth at length herein.

61. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered, falsely arrested and violated the civil rights of the infant plaintiff, D.J.

62. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

63. By the reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

64. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "63" inclusive with the same force and effect as if more fully set forth at length herein.

65. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the infant plaintiff, D.J.

66. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

67. That as a result of the aforesaid false arrest and confinement infant plaintiff, D.J., sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

68. By the reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

69. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "68" inclusive with the same force and effect as if more fully set forth at length herein.

70. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the infant plaintiff, D.J.

71. That the defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against her will and said confinement was not privileged.

72. By the reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON
BEHALF OF D.J., AN INFANT BY HER AND
NATURAL GUARDIAN, NYKESHA JOHNSON**

73. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "72" inclusive with the same force and effect as if more fully set forth at length herein.

74. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard for the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

75. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the infant plaintiff, D.J.

76. That as a result of said intentional and negligent acts, the infant plaintiff, D.J., become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

77. By reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

78. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "77" inclusive with the same force and effect as if more fully set forth at length herein.

79. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON

SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

80. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the infant plaintiff, D.J.

81. That on November 29, 2019, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

82. By reason of the foregoing, infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF D.J., AN INFANT BY HER
MOTHER AND NATURAL GUARDIAN, NYKESHA JOHNSON**

83. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "82" inclusive with the same force and effect as if more fully set forth at length herein.

84. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by infant plaintiff, D.J.

85. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the

constitution and is indifferent to the consequences.

86. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

87. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

88. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

89. As a direct and proximate result of this unlawful conduct, the infant plaintiff, D.J., sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR PUNITIVE
DAMAGES ON BEHALF OF D.J., AN INFANT BY HER MOTHER
AND NATURAL GUARDIAN, NYKESHA JOHNSON**

90. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "89" inclusive with the same force and effect as if more fully set forth at length herein.

91. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

92. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER MURPHY, POLICE OFFICER AARON SOLOMON-Shield No. 20668 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

93. By the reason of the foregoing, the infant plaintiff, D.J., sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR LOSS OF
SERVICES ON BEHALF OF NYKESHA JOHNSON, AS
MOTHER AND NATURAL GUARDIAN OF THE INFANT, D.J.**

94. That at all times hereinafter mentioned, the plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "93" herein, as though more fully set forth herein at length.

95. That at all times hereinafter mentioned, the plaintiff, NYKESHA JOHNSON, was the lawful Mother and Natural Guardian of the infant plaintiff, D.J., and as such said plaintiff, NYKESHA JOHNSON, was entitled to the society and services of said infant plaintiff, D.J.

96. By reason of the afore-described negligence of defendants, the plaintiff, NYKESHA JOHNSON, was deprived of the society and services of the infant plaintiff, D.J., and shall forever be deprived of said society and services.

97. As a result of herein above, plaintiff, NYKESHA JOHNSON, has expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for infant plaintiff, D.J.

98. That by reason of the foregoing negligence on the part of the defendants, the plaintiff, NYKESHA JOHNSON, has been damaged in a sum exceeding the jurisdictional limits of all lower Courts.

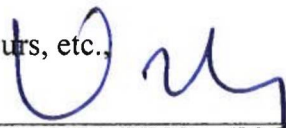
WHEREFORE, plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First**

Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of

Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifteenth** Cause of Action; plaintiff, D.J., an infant by her Mother and Natural Guardian, NYKESHA JOHNSON, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, NYKESHA JOHNSON, Mother and Natural Guardian of infant plaintiff, D.J., demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
November 4, 2020

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020
File No.: 19NJ11-29

ATTORNEY'S VERIFICATION BY AFFIRMATION

ROBERT MIJUCA, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member at RUBENSTEIN & RYNECKI, ESQS., attorneys of record for the Plaintiff/Plaintiffs, I have read the annexed

SUMMONS AND COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason I make the foregoing affirmation instead of the Plaintiff/Plaintiffs is because the Plaintiff/Plaintiffs is/are not presently in the County wherein the attorneys for the Plaintiff/Plaintiffs maintain their offices.

Dated: Brooklyn, New York
November 4, 2020



ROBERT MIJUCA, ESQ.